IN THE DISTRICT COURT SITTING AT WAMFIE ON THE 26TH DAY OF JUNE,2025 BEFORE HIS WORSHIP EUGENE OBENG-NTIM,ESQ.

SUIT NO.:A1/28/2023

AKOSUA TOFOWAA
Per Her Lawful Attorney
AMA NSOWAA ----- **PLAINTIFF**
H/No.: NT 33
Asunsu No.1

VERSUS

1. **AFRIFA PHILIP ALIAS OSOFO ZION**
2. **KWABENA SAMPSON**
   Per His Lawful Attorney
   ADU JOHNSON
3. **NKETIA** ----- **DEFENDANTS**

Asunsu No.1
Near Dormaa Ahenkro

Plaintiff attorney holder present

1st defendant present

2nd defendant attorney holder present

3rd defendant absent.

Legal Representation: parties are not represented

JUDGMENT

The Plaintiff is seeking the following reliefs:

a) A declaration of title and recovery of possession of all that land being, situate and lying at Nkwantiafuo on Dormaa Stool lands sharing boundaries with the land of 2nd defendant, Papa Kwaku Mensah's land beyond the Kwakuaakwa streamlet, Atombini's land and Kwasi Bour's land(now in possession of 1st Defendant).

b) A declaration of the court that, the grant of portions of the disputed land by 1st defendant to 2nd and 3rd Defendants is null and void.

c) General damages against defendants for their trespassory acts.

Evidence of Plaintiff and witnesses.

Plaintiff, Akosua Tofowaa per her lawful attorney Ama Nsowaa gave evidence that the entire stretch of land gifted to her and her late brother Kwaku Kyeremeh by their late father Kwasi Badu, shared boundaries with late Agya Appiah (which transited to Kwasi Bour and not in 1st defendant's possession), late Kwasi Adu, Papa Kwaku Mensah and Atombini. The land in dispute which is situate and lying at Nkwantiafuo near Dormaa Stool land and bounded by the properties 2nd defendant, Papa Kwaku Mensah, Atombini and Kwasi Bour now in the possession of 1st defendant was her share of the gift from her late father Kwasi Badu which was shared with between her and her brother, Kwaku Kyeremeh in September, 2014. In the same year, 2014, the late Kwaku Kyeremeh sold his entire portion of five plots to the 2nd defendant, leaving that of plaintiff which is the disputed land.

Then on 6th November, 2014, her principal sold two of her plots to 2nd defendant but they objected to the sale and a refund was effected and documents retrieved from him. Plaintiff recently visited her land and detected that 2nd defendant was developing portions of her land reclaimed from his in 2014 with the reason that 1st defendant had sold it to him. Plaintiff concluded that the grant of portions of her land to 2nd and 3rd defendants by 1st defendant are unlawful and an act of trespass.

Plaintiff attached an exhibit to her witness statement filed on 5th September, 2023. A purported sale of two plots of land by plaintiff on 6th November, 2014 to 2nd defendant.

Plaintiff called three witnesses. Kwame Poku, Pw1, the son of the late Kwaku Kyeremeh, stated in his witness statement that he knew the land in dispute since he used to tap palm wine on it. He confirmed the story of the plaintiff regarding the entire land and its boundary owners and also that of the disputed land. He also confirmed the sale of the portions of his father's land to 2nd defendant, although he disagreed with his father about the sale.

Pw1 attached an exhibit, which is a purported sale of five plots by his Opanin Kwaku Kyeremeh on 14th September, 2014 to 2nd defendant.

The second witness of plaintiff, Adjei Mensah Paul @ Papa Kwaku Mensah, who claimed to be 85 year and one of the boundary owners of the land in dispute, testified that he has cultivate his land his entire life.

That the late Kwaku Kyeremeh, a brother of plaintiff had singularly cultivated the entire land, including the land in dispute for several years. He later heard that he gave portions to plaintiff of which her children are now cultivating. He added that he does not share boundary with Agya Appiah which is now in the possession of 1st defendant but shares boundary with plaintiff beyond the kwakwano streamlet. He concluded that he did not witness any claim by Agya Appiah or Kwasi Bour over the disputed land till the current suit.

The other witness of plaintiff, Ansu Siaw @ Atombini stated in his witness statement that he has been cultivating his land for over 30 and shares boundary with the late Kwaku Kyeremeh whom he had slight discrepancies over their boundary. He added that he was told the late Kwaku Kyeremeh had given portions of land including the disputed portion to his sister Akosua Tofowaa to cultivate. He concluded that he does not share boundary with Agya Appiah which is now in the possession of 1st defendant in any way or manner.

Evidence of 1st Defendant for himself and on behalf of other defendants and witnesses.

1st defendant per his witness statement stated that the land in dispute originally belonged to his grandfather, Agya Appiah who was a fetish priest by his uncle Adu Kwadwo for his good services rendered to the ancestral gods. His grandfather thereafter gifted it to his father, Yeboah Augustine Appiah alias Kwasi Bour. Then in or around 2004, the land was gifted to him by his father and he planted economic trees such of teak, cashew and cocoa and had been in undisturbed possession, occupation and ownership for seventeen years.

That the land lies at the left side to the Kwakuakra stream and shares boundary with one Okomfour Kwadwo Yeboah at the right side and that of his late grandfather lies to the left leading to the Nyamsuam Road.

That his grandfather Agya Appiah was a uterine brother of Kwasi Badu whose children are Kwaku Kyeremeh, Akosua Tofowaa(Plaintiff) and Akosua Broni. That Akwasi Badu had land which was different from the land gifted to his grandfather. That the entire land at Nyamsuam road road at the left hand side was gifted to his late grandfather Agya Appiah, Kwasi Badu and Agya Koo by their father Kwabena Yeboah. That the late Kwaku Kyeremeh (son of Kwasi Badu) upon realising that the land was approaching the Asunsu No.1 Community and in the absence of 1st defendant's father Kwasi Bour, started demarcating the land into building plots, selling same to people, including the 2nd defendant.

2nd defendant admitted buying one plot from Kwaku Kyeremeh and four plots from him. The late Kwaku Kyeremeh then prepared documents for the entire five plots for the 2nd defendant upon realising that he, 1st defendant, was bedridden and could not execute the documentation process. 2nd defendant concluded that the dispute was lodged before the Asunsu No. 1 Traditional Committee and CHRAJ and were ruled in his favour.

Defendants called four witnesses.

Augustine Appiah Yeboah @ Kwasi Bour stated in his witness statement that the disputed land which has been demarcated into building plots was formerly gifted to his late father Okomfour Appiah Kwadwo alias Agya Appiah for his services after succeeding his uncle, Adu Kwadwo. That he used to assist his father in the 1950s at a school going age.

That the land shares boundaries Okomfour Kwaku Asamoah to the left while Okomfour Kwaku Asamoah's land lies to the right side at the location popularly called Kwakuakwa which is a stream, the at the banks of the stream withKwasi Yeboah alias Papa Kosaa, Papa Kwaku Mensah, Papa Kwansu and Agya Adu. He concluded that his late father gave various portions of the land to his other siblings, including his, who also gave his portion to his son, the 1st defendant.

The defendants also called one Kwadwo Amponsah a.k.a Koo Donkor. He stated that he got to know the land in dispute when he used to farm and assist his late father Okomfour Kwaku Asamoah in his farming activities. That he used to pluck palm trees during annual festivals on the right side of his father's land which shares boundary with the late Okomfour Agya Appiah to the left and to the right side with one Kwasi Yeboah alias Papa Kosaa.

The defendants also filed a witness statement for Margaret Asantewaa alias Maggie, Dw3. Her testimony was that her late mother used to farm on the land in dispute which was released to her by one Okomfour Agya Appiah and she used to accompany her. He mother also told her that she gave farm produce to the fetish priest okomfour Agya Appiah during festivals. She concluded that after the demise of her mother she farmed on the land without any interference until 1st defendant told her to vacate since the land belonged to him.

The last witness of the defendants, Leenford Yeboah, Dw4, a former Plot Allocation Officer for Asunsu No. 1 Community. That in 2022, he was responsible for plots and boundary demarcations for Asunsu No. 1.

That Asunsu No. 1 Township developed to the land of 1st defendant and after 1st defendant was made aware, he instructed him to measure and demarcate four plots out of the large tract of land for 2nd defendant which he complied. One Kwaku Kyeremeh (now deceased) and a family member of the 1st defendant approached him that they owed a plot near the four plot he had allocated to 2nd defendant and that he should demarcate on building plot to the four bringing it to five plots for the 2nd defendant which he did. He then prepared an undertaking for the 2nd defendant in the presence of credible witness. That later plaintiff and her attorney claimed ownership of the total building plots allocated to the 2nd defendant. He concluded that plaintiff and her attorney reported the matter to CHRAJ Dormaa and after adjudication, it was adjudged in favour of the 2nd defendant.

The witness attached a purported terms of settlement from the Commission on Human Rights and Administrative Justice, Dormaa Ahenkro.

Based on the evidence, following issues are set out for determination:

i. *Whether or not plaintiff is entitled to a declaration of title and recovery of possession of the disputed land at Nkwantiafuo on Dormaa Stool land.*

ii. *Whether or not the grant of portions of the disputed land by 1st defendant to 2nd and 3rd Defendants be declared null and void by the court.*

iii. *Whether or not plaintiff is entitled to general damages for defendants trespassory acts.*

iv. Whether or not the land dispute has been resolved by the Office of the Commission on Human Right and Administrative Justice.

Applicable laws and cases.

Section 11(1) and (4) of the Evidence Act 1975 (NRCD 323) also provides as follows:

> *'(1) for the purposes of this Act, the burden of producing evidence means the obligation of a party to introduce sufficient evidence to avoid ruling on the issue against that party.*
>
> (4) *In the other circumstances the burden of producing evidence requires a party to produce sufficient evidence so that all the evidence a reasonable mind could conclude that the existence of the fact was more probable that its non-existence'*

Further, section 14 of the Evidence Act, 1975 (NRCD 323) states as follows:

> *Except as otherwise provided by law, unless and until it is shifted a party has the burden of persuasion as to each fact the existence or non-existence of which is essential to the claim or defence he is ascertain.*

Proof in civil proceedings is established by the principle of the preponderance of probabilities or balance of probabilities. Section 12(2) provides that except as otherwise provided by law the burden of persuasion requires proof by preponderance of probabilities.

The Supreme Court in the case of **Odonkor and others v Amartei GBR 1993-94 VOL 1** held that:

> *the Evidence Decree 1975 (NRCD 323) sections 11(4) and 12 provided that in all civil cases judgment might be given in favour of a party on the preponderance of probabilities.*

This position is supported by the Supreme Court of **Adwubeng v. Domfeh [1997-98] 1 GLR 282** per Ampiah, JSC at p.295

> *sections 11(4) and 12 of NRCD 323 clearly provide that the standard of proof in all civil actions is proof by a preponderance of probabilities-no except-ions are made.*

What is required by the court, under normal circumstances, is to evaluate the evidence of the parties, including their witnesses, and draw conclusion that, on the preponderance or balance of probabilities, the court is inclined to accept the evidence of one party relative to that of the other party.

The present action is for a declaration of title to land, among other ancillary reliefs. There have been previous judicial decisions requiring a party seeking a declaration of title to land to succeed based on his claim and not to rely on the weakness of the evidence of the opponent. In essence, the burden of proof of title to land by a party in a civil action was proof beyond reasonable doubt, which was akin to proof in criminal trials. This position is no longer good law in view of the Evidence Act. This position was emphasised in the case of **Adwubeng v. Domfeh** (supra) where the court stated that:

In the light of NRCD 323 therefore the cases which hold that proof of title to land required proof beyond reasonable doubt, no longer represent the present state of the law.

The parties led evidence based on the historical acquisition of the land in issue by their respective forefathers. Such evidence is known as traditional evidence. Judicial decisions have provided a test for the evaluation of such evidence. Thus, in the case of **Djangmah vrs Dorkutso Anor (J2/01/2024) 2024 GHASC 46** dated 30 October 2024, the Supreme Court per Ackah-Yensu, JSC had this to say at p.3

There is a tall list of judicial guidance on the proper approach to the evaluation of conflicting traditional evidence. The test has always been, and continues to be, that the same should be resolved by examining the conflict in the light of such recent facts as established by the evidence adduced by the parties.

His Lordship then proceeded to state the locus classicus with respect to traditional evidence by the Privy Council in the case of **Adjeibi-Kojo v Bonsie [1957] 3 WALR 257**, per Lord Denning as follows:

"[T]he dispute was all as to the traditional history which had been handed down by word of mouth from their forefathers. In this regard it must be recognized that, in the course of 4 transmission from generation to generation, mistakes may occur without dishonest motives whatsoever…The most satisfactory method of testing traditional history is by examining it in the light of such more recent facts as can be established by evidence in order to establish which of two conflicting statements of tradition is more probably correct."

The above principle has been accepted and applied in various decisions requiring the evaluation of conflicting traditional evidence in our legal system, including the case of **In Re Taahyen & Asaago Stools; Kumanin II v Anin [1998-99] SCGLR 399.** The Supreme Court per Kpegah JSC pronounced as follows at p 417.

> *"To sum up, in assessing rival traditional evidence the court must now allow itself to be carried away solely by the impressive manner in which one party narrated his version and how coherent that version is; it must rather examine the events and acts within living memory established by the evidence paying particular attention to undisputed acts of ownership and possession on record; and then to see which version of the traditional evidence, whether coherent or incoherent, is rendered more probable by the established acts and events; and finally, the party whose traditional evidence such established acts and events support or render more probable must succeed unless there exists on the record of proceedings, a very cogent reason to the contrary."*

Similarly, in the Supreme Court case of **Adjei v. Acquah And Others [1991] 1 GLR 13**, Wiredu J.S.C. at p.29-30 stated that

> *I do not think the guidelines laid down in Dua III v. Tandoh (supra) and Adjeibi-Kojo v. Bonsie (1957) 3 W.A.L.R. 257 are to the effect that for a plaintiff to succeed his traditional story must be accepted as proved. This is not a sine qua non to succeeding: see Ebu v. Ababio (1956) 2 W.A.L.R. 55. What the authorities require is that such stories must be weighed along with recent facts as acts of exercise of rights of ownership to see which of the two rival stories appears more probable.*

Facts established by matters and events within living memory, especially evidence of acts of exercise of ownership and possession, must take precedence over mere traditional evidence.

His Lordship concluded thus:

It is now well settled law that where the whole evidence in a case is conflicting and confusing and there is little to choose between the two rival traditional stories, possession and evidence of recent exercise of acts of ownership should be the best guide to determining title.

The court would therefore evaluate the conflicting stories of the parties in the light of such recent facts such as ownership and possession of the land in dispute and draw a conclusion, on the preponderance of probabilities per sections 11(4) and 12 of the Evidence Act,that of a party is more probable than the other.

Evaluation of the facts and application of laws

The court has earlier stated that the claim of the plaintiff would be determined by traditional evidence.

That is, the court shall first ascertain the history of acquisition by the parties based on their evidence and the witnesses called. The court would thereafter examine acts or exercise of ownership and possession by the parties in recent times.

The plaintiff is seeking for a declaration of title, recovery of possession and damages. She is therefore required to lead evidence to prove and establish the identity of the land. Thus in the case of **Fofie and another v Wusu[1992-93] 2 G B R 877 - 883** the Court of Appeal held that:

It is trite learning that to succeed in an action for a declaration of title to land a party must adduce evidence to prove and establish the identity of the land in respect of which he claimed a declaration of title. In the case of Kwabena v Atuahene [1981] GLR 136 the Court of Appeal stated that the onus of proof required by law as regards the identity of land would be discharged by meeting these conditions:

"(a) the plaintiff had to establish positively the identity of the land to which he claimed title with the land the subject matter of the suit.

(b) the plaintiff also had to establish all his boundaries.

The evidence as presented by the plaintiff's attorney was that the entire stretch of land was gifted to her and her late brother Kwaku Kyeremeh by their late father Kwasi Badu and they share boundaries with late Kwasi Adu, Papa Kwaku Mensah and Atombini, Agya Appiah (which transited to Kwasi Bour and not in 1st defendant's possession). She further stated that the land which is in dispute is situate and lying at Nkwantiafuo near Dormaa Stool land and bounded by the properties 2nd defendant, Papa Kwaku Mensah, Atombini and Kwasi Bour now in the possession of 1st defendant and was her share of the gift from her late father Kwasi Badu. It was shared between her and her brother, Kwaku Kyeremeh in September, 2014, after which her late brother Kwaku Kyeremeh sold his entire portion of five plots to 2nd defendant, leaving that of plaintiff which is the disputed land.

Plaintiff called three witnesses. Two of them who claim to share boundary with plaintiff. Adjei Mensah Paul @ Papa Kwaku Mensah, Pw2, who claimed to be 85 years and have been farming there all his life and Ansu Siaw @ Atombini, Pw3, who claimed to have been farming there from 1983, corroborated her evidence that Kwasi Badu cultivated the disputed farm.

Then Pw1, the son of Kwaku Kyeremeh and the brother of plaintiff, whom plaintiff claimed to have shared the land and given her a portion which is in dispute, also confirmed the evidence of plaintiff.

1st defendant, in his defence gave evidence that the land in dispute originally belonged to his grandfather, Agya Appiah, who was a fetish priest which was given to him by his uncle, Adu Kwadwo, for his good services rendered to the ancestral gods and same was gifted to his father, Yeboah Augustine Appiah alias Kwasi Bour. Then in or around 2004, his father gifted it to him after which he planted economic trees such of teak, cashew and cocoa and had been in undisturbed possession, occupation and ownership for seventeen years. That the land lies at the left side to the Kwakuakra stream and shares boundary with one Okomfour Kwadwo Yeboah at the right side while that of his late grandfather lies to the left leading to the Nyamsuam Road.

He also added that Kwaku Kyeremeh (son of Kwasi) in the absence of 1st defendant's father Kwasi Bour, and while 1st defendant was bedridden and could not prepare documents, started demarcating the land into building plots and selling same to people, including the 2nd defendant.

Defendants called four witnesses. Augustine Appiah Yeboah a.k.a Kwasi Bour, Dw1, the father and vendor of 1st defendant corroborated the evidence that the land belonged to his father who gifted same to him and who thereafter gifted it to1st defendant. Kwadwo Amponsah a.k.a Koo Donkor, Dw2 and Margaret Asantewaa, Dw3 corroborated the evidence of 1st defendant that Okomfour Agya Appiah cultivated the land in dispute.

Parties called witnesses who purported to know the land in issue. Plaintiff called Pw2 and Pw3 who are living and independent witnesses to support her claim. Pw2, who is 85 stated that he has been cultivating his land all the years of his life and is aware Kwaku Kyeremeh singularly cultivated the land for several years. Pw3 who has been cultivating the land for over 30 years, claimed that he knows the land belongs to Kwaku Kyeremeh because he had on numerous occasions had slight discrepancies with him over their boundary.

1st defendant first called his father, Dw1 whose knowledge of the boundary was that he used to assist his father in the late 1950s at his school going age. Based on his claim that he only assisted his father at a school going age in the 1950's, his knowledge of the boundaries of the disputed land cannot be equated to that of Pw2 and Pw3 who have cultivate their respective farms for decades. Furthermore, Dw1 has a paternal relationship with 1st defendant. He therefore has a vested interest in the outcome of the suit and his testimony would therefore be viewed with suspicion.

The two other witnesses, Dw2 and Dw3 are relatives of their boundary owners and not living witnesses who share boundary with 1st defendant. While Dw3 gave evidence on the boundary based of what she was told by her mother, the basis of Dw2's knowledge of the boundary is that he used to assist his father and also pluck palm trees for annual festivals.

Therefore, based on the scanty and secondary knowledge of Dw2 and Dw3, as well as the paternal relationship between Dw1 and 1st defendant, the court inclined to accept the testimonies of Pw2 and Pw3 who are independent witnesses and possess primary knowledge of the land in dispute based on their several decades of farming there.

Consequently, the court would accept the traditional evidence of Plaintiff as it relates to the historical acquisition of the land in dispute by her fore-bearers.

The court would now examine acts or exercise of ownership and possession by the parties in recent times. It is the evidence of plaintiff that in September, 2014, the land in possession of Kwaku Kyeremeh was shared between him and plaintiff. Kwaku Kyeremeh in the same year sold his entire portion of five plots to 2nd defendant, leaving that of plaintiff. The son of Kwaku Kyeremeh gave evidence and corroborated the evidence of his late father. He attached an undertaking dated 29th September, 2014 showing the sale of 5 plots to 2nd defendant. The Plaintiff also sold two plots to 2nd defendant but it was reversed because her children claimed they were not consulted. Plaintiff attached an undertaking dated 13th November, 2014. The undertaking was essentially a sale of two plots to 2nd defendant. The two documents were duly signed by Kwaku Kyeremeh and plaintiff, 2nd defendant, Dw4 and community elders.

The response of 1st defendant in his statement of defence and witness statement was that Kwaku Kyeremeh, in the absence of 1st defendant's father Kwasi Bour, and while 1st defendant was bedridden and could not prepare documents, started demarcating the land into building plots and selling same to people, including the 2nd defendant. When 1st defendant was confronted under cross examination with the undertaking executed between Kwaku Kyeremeh and 2nd defendant, the following transpired:

Ques: In 2014,Papa Kwaku Kyeremeh sold five plots to Kwabena Sampson, One Yeboah Leenford carved the plot for Kwabena Sampson

Ans: I authorised my father's brother Kwaku Kyeremeh to sell four plots but he added one for which I was not happy. Leenford did the documentation of the plot.

Ques: I put it to you that Kofi Adjei, Mr. Kontor are witnesses for Kwabena Sampson when Papa Kwaku Kyeremeh sold the land to him.

Ans: That is not true. I authorised Kwaku Kyeremeh to sell the land to Kwabena Sampson and the witnesses are aware.

Ques: Maame Tofowaa, the plaintiff, Madam Akua Broni are witnesses for Kwaku and there is a document to that.

Ans: That is not true.

Ques: Kwabena Sampson has erected a pen for his animals.

Ans: That is true but I authorised the sale to him.

The answers provided by the 1st defendant contradict his position in his statement of defence and witness statement that Kwaku Kyeremeh demarcated the land and sold them to people including the 2nd defendant when the father of 1st defendant was away and 1st defendant was bed ridden. Furthermore, the witness of 1st defendant, Dw4 provided a contrary evidence regarding the demarcation of the land and the undertaking executed.

According to him, 1st defendant authorised him to demarcate four plots for 2nd defendant and prepare a document but he added one plot at the instance of Kwaku Kyeremenh and a relative of 1st defendant.

Considering that 1st defendant's evidence contradicts his answers under cross examination, while at the same time contradicts his own witness Dw4, he appears to the court to be an untruthful person who is prepared to offer any explanation when confronted with the truth.

Similarly, plaintiff' attorney, on the undertaking executed by plaintiff gave evidence that she sold two plots of the land in dispute to 2nd defendant but had to reverse it when her children objected to the sale without their consultation. When a question was put to 1st defendant by plaintiff, this is his answer.

Ques: Maame Tofowaa also sold two plots to Kwabena Sampson.

Ans: She stole it and when I became aware Kwabena Sampson has received a refund.

What 1st defendant is saying in essence is that the refund of the money by plaintiff to 2nd defendant was at his instance. However, there is no evidence on record to support his position. Therefore, based on his earlier readiness to be untruthful with the facts when confronted with evidence, the court is inclined reject the explanation of 1st defendant over the refund and accept the evidence of plaintiff that she reversed the sale to 2nd defendant because her children claimed they were not consulted.

It also important that the court should address the role Dw4 played in the execution of the two undertakings. Dw3, Leenford Yeboah, a former officer of the Plot Allocation for Asunsu No. 1 Community gave evidence in support of 1st defendant's defence. He admitted in his evidence that he prepared the undertaking for the Kwaku Kyeremeh in the presence of credible witnesses. However, when he was confronted with the same document and that of plaintiff under cross examination, his answers are as follows:

Ques: In 2014 Papa Kwaku Kyeremeh sold 5 plots of land to 2nd defendant. Were you the one who allocated the land to 2nd defendant.

Ans: No

Ques: Plaintiff sold 2 plots to 2nd defendant, you were the one who allocated it to 2nd defendant

Ans: No

Ques: I put it to you that you allocated the plot. Your name is on the document

Ans: I have not allocated any plot to 2nd defendant.

The two undertakings have the name of Leenford Yeboah which he duly signed as plot allocation officer. The signature is similar to the signature on his witness statement filed on 31st August, 2023. The initial admission in his witness statement of the preparation of the document for Kwaku Kyeremeh and the outright denial of his deed under cross examination cast serious doubts over his character as a truthful witness. The court would therefore look at his entire evidence with suspicion and reject same.

Having considered the evidence of parties regarding recent acts of ownership, I find as a fact that plaintiff and his late brother, Kwaku Kyeremeh, have exercised acts of ownership and possession over the land in dispute per their sale to 2nd defendant dated 28th September, 2014 and 23rd November, 2014. Therefore, any act of ownership by 1st defendant by sale of portions of the disputed land shall be invalid.

Another issue which needs to be addressed is the contention of 1st defendant that the matter has been adjudicated by CHRAJ, Dormaa Ahenkro Office and Asunsu No. 1 Traditional Committee where they ruled against plaintiff. Dw4 corroborated his evidence of the resolution at CHRAJ. He attached a terms of settlement from the Commission on Human Rights and Administrative Justice, Dormaa Ahenkro.

The purported terms of settlement is dated 18th August, 2022. The plaintiff, Akosua Tofowaa and one other complainant, Joseph Afrifa did not append their signature to the agreement. The plaintiff would be bound to the terms of settlement if she had signed it. In the absence of her signature, the terms of the agreement remain intentions of the parties and therefore not binding and enforceable against her.

Application of the law.

The court, having evaluated the conflicting evidence of parties regarding the acquisition of the disputed land and in the light of such recent acts of ownership and possession of the land in dispute by plaintiff, will conclude that, on the preponderance of probabilities per sections 11(4) and 12 of the Evidence Act, the evidence of plaintiff is more probable than that of defendants.

Plaintiff shall, therefore, be entitled to a declaration of title to the disputed land.

Consequently, any act of ownership exercised by 1st defendant by the sale of portions of the disputed land to persons shall be invalid.

Issue 1:

Whether or not plaintiff is entitled to a declaration of title and recovery of possession of the disputed land at Nkwantiafuo on Dormaa Stool land.

The court, having accepted the traditional evidence of plaintiff regarding the acquisition of the disputed land and in the light of her recent acts of ownership and possession, will hold that plaintiff is entitled to a declaration of title and recovery of possession of the disputed land at Nkwantiafuo on Dormaa Stool land sharing boundaries with the land of 2nd defendant, Papa Kwaku Mensah's land beyond the Kwakuaakwano streamlet, Atombini's land and Kwasi Bour's land(now in possession of 1st Defendant).

Issue 2

Whether or not the grant of portions of the disputed land by 1st defendant to 2nd and 3rd Defendants be declared null and void by the court.

The court having held that plaintiff is entitled to a declaration of title and recovery of possession of the disputed land, will further hold that the exercise of ownership by 1st defendant by the sale of portions of the disputed land to 2nd and 3rd defendants is invalid and therefore null and void.

Issue 3

Whether or not plaintiff is entitled to general damages for defendants trespassory acts.

The court has held the plaintiff is entitled to a declaration of title and recovery of possession against defendants and that the purported sale of portions of the land to 2nd and 3rd defendant was invalid. The purported sale by the 1st defendant amounted to trespass. Plaintiff shall therefore be entitled to nominal damages of GH¢ 2,000.00 in the light of her failure to prove actual damages.

Issue 4

Whether or not the land dispute has been resolved by the Office of the Commission on Human Right and Administrative Justice.

The court has earlier stated that the absence of the signature of plaintiff on the terms of agreement, places the agreement on the pedestal of intentions of the parties. The court would therefore hold that the unsigned agreement is not binding and enforceable against plaintiff.

The award of cost

The Plaintiff did not pray for cost as one of her reliefs. Nevertheless, since the award of cost is at the discretion of the court, the court shall exercise its discretion by awarding Plaintiff cost. Plaintiff shall be entitled to cost of GH¢ 1,000 each against defendants.

All the reliefs sought by plaintiff are granted with cost.

Eugene Obeng-Ntim

(District Magistrate)